

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Team # 1	CCRB Case #: 201409273	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/30/2014 8:30 PM	Location of Incident: 1349 Stratford Avenue	18 Mo. SOL 2/29/2016	Precinct: 43
Date/Time CV Reported Mon, 09/08/2014 1:04 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 09/08/2014 1:06 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Silvestr Castro	23346	941520	043 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Alexander Velasquez	01213	942659	043 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Silvestr Castro	Discourtesy: PO Silvestr Castro spoke rudely to § 87(2)(b) [REDACTED]	A . Unsubstantiated

Case Summary

On August 30, 2014, at approximately 8:30 p.m., § 87(2)(b) was inside her vehicle which was double parked in front of 1349 Stratford Avenue, a one way street in the Bronx. PO Castro and PO Velasquez approached § 87(2)(b)'s vehicle. PO Castro requested that she move her vehicle. Approximately ten minutes later PO Castro and PO Velasquez returned and § 87(2)(b) was parked in the same location at which point PO Castro allegedly used profanity (**Allegation A**). § 87(2)(b) was then issued a criminal summons for § 87(2)(b).

Mediation, Civil and Criminal Histories

§ 87(2)(b) was offered mediation and rejected it § 87(2)(b). On November 12, 2014, a FOIL request was sent to the New York City Comptroller's Office and the status of a Notice of Claim for § 87(2)(b) is pending. § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (encl. A2)
- PO Castro has been a member of service for eight years and there are no substantiated CCRB allegations against him (encl. A1).

Findings and Recommendations

Allegation A – Discourtesy: PO Silvestre Castro spoke rudely to § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on October 2, 2014 (encl. B7). § 87(2)(b) alleged that on August 30, 2014, while double parked in front of 1349 Stratford Avenue, in the Bronx, PO Castro got out of a marked police vehicle and approached § 87(2)(b)'s driver side. PO Castro then asked § 87(2)(b) "Didn't I fucking tell you to move?" On September 29, 2014, § 87(2)(b) provided a phone statement. § 87(2)(b) alleged that while she was seated in the passenger's seat of § 87(2)(b)'s vehicle she heard PO Castro tell § 87(2)(b) "You got to be fucking kidding me. I told you to move your vehicle." (encl. B12)

On November 3, 2014, PO Castro and his partner PO Velasquez were interviewed at the CCRB (encl. C6-7 and encl. C12-13). PO Castro stated he saw § 87(2)(b) double parked and asked her to move, but approximately ten minutes later § 87(2)(b) still had not moved her vehicle. PO Castro then wrote and issued § 87(2)(b) a summons. PO Castro stated at no time did he use profanity during his interaction with § 87(2)(b). PO Velasquez remained in the police vehicle and did not hear the conversation between PO Castro and § 87(2)(b).

§ 87(2)(g)

§ 87(2)(b). As such, it is recommended that **Allegation A** be **Unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date